

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

GREGORY BERG,

Plaintiff,

v.

THE CITY OF NEW YORK, a municipal entity,

Defendant.

INDEX NO.

SUMMONS

Plaintiff designates New York County as the County of Venue based on the location where the claim arose.

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon plaintiff's attorney, at his address stated below, an answer to the attached complaint.

If this summons was personally served upon you in the State of New York, the answer must be served within 20 days after such service of the summons, excluding the date of service.

If the summons was not personally delivered to you within the State of New York, the answer must be served within 30 days after service of the summons is complete as provided by law.

If you do not serve an answer to the attached complaint within the applicable time limitation, a judgment may be entered against you, by plaintiff, for the relief demanded in the complaint, without further notice to you.

The action will be heard in the Supreme Court of the State of New York, in and for the County of New York. This action is brought in New York County because it is the place in which the claim arose.

Dated: February 17, 2022
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP
99 Park Avenue, PH/26th Floor
New York, New York 10016
(212) 490-0400

By: 
David B. Rankin

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
GREGORY BERG,

Plaintiff,

-v-

THE CITY OF NEW YORK, a municipal entity,

Defendant.
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**VERIFIED COMPLAINT AND
DEMAND FOR A JURY TRIAL**

Index No.

Plaintiff Gregory Berg, by his attorneys, Beldock, Levine & Hoffman LLP, for his
complaint, alleges as follows:

INTRODUCTION

1. This is a civil rights action brought to vindicate Plaintiff's rights under the Constitution of the State of New York, the laws of the State of New York, and common law.

2. Plaintiff's rights were violated when police officers employed by Defendant THE CITY OF NEW YORK, and acting under color of law, unconstitutionally and without any legal basis used gratuitous, unlawful force against Plaintiff and arrested him without justification or probable cause. By reason of Defendant's actions, through their employees, officers, and/or agents, Plaintiff's rights were violated, and he sustained physical and emotional injuries.

3. Plaintiff seeks an award of compensatory and punitive damages in addition to attorneys' fees.

PARTIES

4. Plaintiff Gregory Berg is and was at all times relevant to this action a resident of County of Kings in New York State.

5. Defendant the City of New York (“City”) is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It has all the powers vested in it by the laws of the State of New York, the City of New York and the Charter of the City of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD. At all relevant times herein, Defendant City was the employer of the police officers whose conduct caused Plaintiff’s injuries.

JURISDICTION

6. This action is brought pursuant to the Constitution of the State of New York and the laws of the State of New York.

7. Plaintiff has complied with the statutory requirements of GML § 50-e prior to commencing suit.

VENUE

8. Venue is properly laid in the Supreme Court of the State of New York, County of New York, as the incident occurred in New York County.

JURY DEMAND

9. Plaintiff demands a trial by jury in this action on each one of his damage claims.

STATEMENT OF FACTS

10. On November 4, 2020, at approximately 10:15 p.m., at or around 14th Street and 4th Avenue in Union Square in the County of New York, Mr. Berg, a photojournalist, was taking photographs for the *Daily Mail*.

11. At approximately the above time and place, members of the New York Police Department (“NYPD”) assaulted and arrested Mr. Berg without justification or probable cause.

12. In arresting Mr. Berg, NYPD officers used unwarranted force against him including placing excessively tight plastic cuffs on Mr. Berg’s wrists.

13. NYPD officers further caused damage to Mr. Berg’s camera.

14. Mr. Berg was transported to a precinct and spent hours in custody before he was finally issued a summons and released.

15. The summons issued to Mr. Berg was dismissed before the court date.

16. As a result of the officers’ unlawful conduct, Mr. Berg was deprived of his liberty and sustained physical, emotional, and other injuries.

17. The NYPD members whose actions caused injury to Mr. Berg were acting under color of law as agents, employees and/or officers of Defendant THE CITY OF NEW YORK.

FIRST CLAIM FOR RELIEF
ASSAULT AND BATTERY

1. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

2. By the actions described above, Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, did inflict assault and battery upon Plaintiff.

3. The acts and conduct of Defendant, through its employees, agents and/or officers, were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

4. NYPD officers assaulted Plaintiff without cause while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority,

and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

5. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

SECOND CLAIM FOR RELIEF
FALSE ARREST AND FALSE IMPRISONMENT

6. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

7. By the actions described above, Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, caused to be falsely arrested or falsely arrested Plaintiff, without reasonable or probable cause, illegally and without a warrant, and without any right or authority to do so.

8. Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, caused to be falsely detained and imprisoned or falsely detained and imprisoned Plaintiff without legal justification, without the consent of Plaintiff, and while Plaintiff was aware of such detention and imprisonment.

9. The acts and conduct of Defendant, through its employees, agents and/or officers were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

10. NYPD officers arrested, detained, and imprisoned Plaintiff without probable cause while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City,

invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

11. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

THIRD CLAIM FOR RELIEF
TRESPASS TO CHATTELS

12. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

13. By the actions described above, Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, physically and intentionally interfered with Plaintiff's personal property, including his camera, and with Plaintiff's right to possession thereof.

14. NYPD officers unlawfully interfered with Plaintiff's property and property rights while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

15. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

FOURTH CLAIM FOR RELIEF
CONVERSION

16. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

17. By the actions described above, Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, intentionally and without authority, assumed and exercised control over Plaintiff's personal property and interfered with Plaintiff's right to possession thereof, including by breaking and/or causing damage to Plaintiff's camera.

18. NYPD officers unlawfully interfered with Plaintiff's property and property rights while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

19. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

FIFTH CLAIM FOR RELIEF
INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

20. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

21. By the actions described above, Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to plaintiff. The acts and conduct of Defendant, through its employees, agents and/or officers, were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

22. NYPD officers acted with extreme and outrageous conduct while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers,

and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

23. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

SIXTH CLAIM FOR RELIEF
NEGLIGENCE

24. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

25. Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, violated its duty of care when it assumed custody of Plaintiff and negligently caused injuries, emotional distress and damage to Plaintiff. The acts and conduct of Defendant, through its employees, agents and/or officers, were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

26. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

SEVENTH CLAIM FOR RELIEF
NEGLIGENT HIRING, SCREENING, RETENTION

27. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

28. Defendant THE CITY OF NEW YORK negligently hired, screened, and retained the NYPD officers who engaged in the conduct underlying Plaintiff's claims. The acts and conduct of Defendant in negligently hiring, screening, and retaining its police officers were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

29. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

EIGHTH CLAIM FOR RELIEF
NEGLIGENT SUPERVISION AND TRAINING

30. Defendant CITY OF NEW YORK and its agents negligently trained and supervised members of the NYPD as to the January 2020 amendment to CPL § 150.20. This failure inevitably resulted in NYPD officers continuing to make arrests for violations in the same manner as they would crimes, even though it was clear the legislature had the intent to bar such arrests.

31. The acts and conduct of Defendant were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

32. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

NINTH CLAIM FOR RELIEF
ABUSE OF PROCESS

33. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

34. By the conduct and actions described above, Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, employed regularly issued process against Plaintiff compelling the performance or forbearance of prescribed acts. The purpose of activating the process was intent to harm Plaintiff without economic or social excuse or justification, and to seek a collateral advantage or corresponding detriment to Plaintiff, which was outside the legitimate ends of the process.

35. By the actions described above, Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to plaintiff. The acts and conduct of Defendant, through its employees, agents and/or officers, were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

36. NYPD officers acted with extreme and outrageous conduct while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

37. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

TENTH CLAIM FOR RELIEF
DENIAL OR DELAY OF MEDICAL CARE AND/OR MEDICATION

38. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

39. Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, denied and/or delayed providing Plaintiff reasonable, good faith medical attention while he was in custody of NYPD members.

40. As a result, Plaintiff suffered serious injury or significant exacerbation of injury.

41. Defendant's conduct violated New York Civil Rights Law Section 28.

ELEVENTH CLAIM FOR RELIEF
VIOLATIONS OF THE NEW YORK STATE CONSTITUTION

42. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

43. Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers subjected Plaintiff to the foregoing acts and omissions without due process of law, thereby depriving Plaintiff of his rights, privileges, and immunities secured by Article 1, §§ 8, 9, 11, and 12 of the New York State Constitution, including, without limitation, the following deprivations of rights, privileges, and immunities:

- i. freedom from unreasonable search and seizure of their person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment and from being wrongfully detained without cause or legal justification, and of which Plaintiff was aware and did not consent;
- iv. freedom from deprivation of liberty without due process of law;
- v. freedom from deprivation of property without due process of law;
- vi. freedom from deprivation of liberty of speech; and
- vii. freedom from deprivation of the right to assemble.

44. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

WHEREFORE, Plaintiff demands judgment against Defendant THE CITY OF NEW YORK and prays for relief as follows:

- a. that he be compensated for violation of his rights, pain, suffering, mental anguish and humiliation; and
- b. that he be awarded punitive damages; and
- c. that he be compensated for attorneys' fees and the costs and disbursements of this action; and
- d. for such other further and different relief as to the Court may deem just and proper.

Dated: February 17, 2022
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP



By: _____
David B. Rankin

99 Park Avenue, PH/26th Floor
New York, New York 10016
(212) 490-0400

ATTORNEY'S VERIFICATION

I, David B. Rankin, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

- 1) I am the attorney of record for the Plaintiff.
- 2) I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
- 3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: February 17, 2022
New York, New York

Respectfully submitted,

By: 

David B. Rankin
99 Park Avenue, PH/26th Floor
New York, New York 10016
(212) 490-0400